

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Date Purchased:
Index No.

-----X
BRIAN BROWN,

Plaintiff,

- against -

SUMMONS

Plaintiffs designate
KINGS COUNTY
as the place of trial.

The basis of the venue is
Plaintiff's Residence
1191 Park Place, Apt. 4F
Brooklyn, NY 11213

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER
HERNANDEZ, SHIELD #7459, (77TH POLICE
PRECINCT), JOHN DOE SERGEANT (77TH POLICE
PRECINCT) and JOHN DOE COMPLAINANT,

Defendants,

-----X
To the above named defendants:

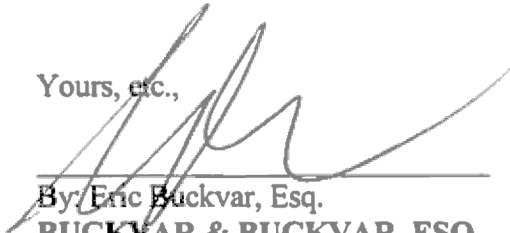
KINGS COUNTY

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 27, 2020

Yours, etc.,

CERTIFIED BY:


By: Eric Buckvar, Esq.
BUCKVAR & BUCKVAR, ESQ.
Attorney for Plaintiff
BRIAN BROWN
11 Broadway, Suite 1054
New York, NY 10004
(212) 962-2173

DEFENDANTS ADDRESS

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza, Path

New York, New York 10038

POLICE OFFICER HERNANDEZ, SHIELD #7459,

77TH POLICE PRECINCT

1 Police Plaza, Path

New York, New York 10038

JOHN DOE SERGEANT

77TH POLICE PRECINCT

1 Police Plaza, Path

New York, New York 10038

Upon your failure to appear, judgment will be taken against you by default for the sum in the cause of action, with interest and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
BRIAN BROWN,

Index No.:

VERIFIED COMPLAINT

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER
HERNANDEZ, SHIELD #7459, (77TH POLICE
PRECINCT), JOHN DOE SERGEANT (77TH POLICE
PRECINCT) and JOHN DOE COMPLAINANT,Defendants,
-----X

Plaintiff, **BRIAN BROWN**, by his attorney **BUCKVAR & BUCKVAR**, alleges as follows:

INTRODUCTION

1. Plaintiff **BRIAN BROWN** brings this action against individual police officers, supervisors, The City of New York and The New York City Police Department for damages arising out of a false arrest, false imprisonment, malicious prosecution, other unconstitutional policies and actions, and common law claims against defendant police that occurred on December 11, 2019.

2. Plaintiff brings this action against defendants to redress the deprivation of rights secured him by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983, and the common law.

3. Plaintiff is a citizen of the State of New York. Each defendant is, upon information and belief, a citizen of the State of New York, and defendant The City of New York is a Municipal Corporation duly organized, operating and existing by virtue of the laws of the State of New York.

PARTIES

4. Plaintiff is a resident in the County of Kings and City and State of New York.

5. Defendant The City of New York operates and governs The New York City Police Department pursuant to the laws of the City of New York and State of New York.

6. Defendants are sued both INDIVIDUALLY and in their official capacities. The plaintiff intends to determine the identity of such persons by way of discovery. They are sued both individually and in their official capacities. At all times pertinent hereto, defendant officers and supervisors were employed by The New York City Police Department.

7. At the time of the alleged incident at all times pertinent hereto, the defendants acted under color of law, of a statute, ordinance, regulation, custom, or usage.

8. Plaintiff has complied with all the conditions precedent in the bringing of this action and has complied with all the provisions of the statutes in such cases made and provided, more particularly, plaintiff has presented their claim on or about December 19, 2019, by notice required by General Municipal Law, which was given to the City of New York by certified mail, return receipt requested. This notice set forth the facts underlying plaintiff's claim against The City of New York and its agents. To date, no compensation has been offered by The City of New York in response to this claim.

9. To date, more than 90 days have elapsed since said presentation of the claim and The City of New York has not requested an examination of plaintiff pursuant to General Municipal Law 50-h.

10. On December 11, 2019, while the plaintiff was walking between Park Place, Kingston Avenue and Albany Avenue when he was approached by defendant John Doe Complainant who made an obviously false and/or mistaken allegation that plaintiff **BRIAN BROWN** stole items from defendant John Doe Complainant's car. Defendant John Doe Complainant stated to defendants that he did not see plaintiff steal said items, but instead displayed a photograph and/or video that clearly showed another person had stolen said items. It was readily obvious to any reasonable law enforcement official that the allegation against plaintiff was incorrect, false, and/or mistaken. Nonetheless, plaintiff was then falsely arrested without probable cause under arrest number K19660389Q, in the County of Kings, City and State of New York.

11. Said false arrest and imprisonment upon the person of the plaintiff was unprovoked and said arrest and imprisonment occurred while the Police officers were in the performance of their duties.

12. Said arrest upon the person of the plaintiff by the police officers did occur on December 11, 2019, while the plaintiff was walking between Park Place, Kingston Avenue and Albany Avenue in the County of Kings, City and State of New York, and same occurred without any justification or cause.

13. Plaintiff was subsequently arrested and brought to the precinct. Charges were then filed against plaintiff. At the time that plaintiff was transported to the precinct by police, and subsequently to Court, he was required to go with defendants and was not free to leave. Similarly during the entire time that plaintiff was held in custody, he was not free to leave, despite the fact that there was no probable cause that he had committed a crime or arrest warrant on which to base his detention.

14. As a direct and proximate result of the acts and omissions of defendants, plaintiff continues to feel and experience severe emotional distress due to the actions of defendants and the other officers, was forced to suffer pain and mental cruelty, was deprived of his physical liberty, loss of reputation, defamation of character, loss of earnings, shame and humiliation and was forced to incur legal expenses, sustained and suffered serious personal injuries, became sick, sore, lame and disabled, resulting in pain and suffering, and upon information and belief, these injuries or some of them are of a permanent nature and character and as such, this plaintiff is required to receive hospital and medical treatment.

15. At all times pertinent to these allegations, plaintiff was unarmed and did not pose a threat of death or grievous bodily injury to defendants.

16. At no time pertinent hereto did defendants have probable cause to believe plaintiff had committed or was committing a crime.

COUNT I: VIOLATION OF CONSTITUTIONAL RIGHTS
Defendant the City of New York and The New York City Police Department
(Claim for Compensatory Damages)

17. Plaintiff incorporates herein by reference the allegations contained in paragraphs 1 through 16.

18. Defendants acted with actual malice toward plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of plaintiff. Defendants' actions constitute unreasonable and excessive use of force and deprivation of liberty without due process of law.

19. Upon information and belief, at all times pertinent hereto, The City of New York and The New York City Police Department permitted and tolerated a pattern and practice of unreasonable use of force by police officers of The City of New York.

20. Upon information and belief, The City of New York has maintained a system of review of police conduct which is so untimely and cursory as to be ineffective and to permit and tolerate the unreasonable conduct by police officers.

21. The acts, omissions, systemic flaws, policies, and customs of The City of New York caused police officer of The City of New York to believe that the excessive and unreasonable use of force would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force against plaintiff and others in the future.

22. It was the policy and practice of The City of New York to employ certain police officers, including defendants described in the foregoing paragraphs.

23. It was the policy and practice of The City of New York to authorize certain officers, including defendants to arrest and detain individuals despite the lack of probable cause to arrest or any actual violation which would justify an arrest or the issuance of a ticket. This policy and practice of The City of New York encouraged and caused constitutional violations by police officers of The City of New York, including the violation of plaintiff's constitutional rights by defendants described in the foregoing paragraphs.

24. At all times pertinent hereto, unknown supervisors who supervised the officers who unlawfully violated plaintiff's rights encouraged and tolerated the policies and practices described in the foregoing paragraphs. Defendant The City of New York refused to adequately train, direct,

supervise, or control defendant officers so as to prevent the violation of plaintiff's constitutional rights.

25. At all times pertinent hereto, defendants were acting within the scope of their employment and pursuant to the aforementioned policies and practices of The City of New York. These policies and practices were enforced by defendant The City of York, and were the moving force, proximate cause, or affirmative link behind the conduct causing the plaintiffs' injury. The City of New York is therefore liable for the violation of plaintiff's constitutional rights by defendants.

COUNT II: CONSPIRACY TO VIOLATE CIVIL RIGHTS
(Claim for Compensatory Damages)

26. Plaintiff incorporates herein by reference the allegations contained in paragraphs one through 25.

27. Defendants conspired to violate plaintiff's statutory civil rights as more fully described in the foregoing paragraphs in violation of 42 U.S.C. § 1983, for which defendants are individually liable.

COUNT III: ASSAULT AND BATTERY
Defendant Police Officers
(Claim for Compensatory Damages)

28. Plaintiff incorporates herein by reference the allegations contained in paragraphs 1 through 27.

29. The verbal abuse, and use of non-deadly force by defendants when defendants had no lawful authority to arrest plaintiff, when plaintiff was unarmed and did not pose a threat of death or grievous bodily injury to defendants or others, was without justification or provocation, was excessive for which defendants are individually liable.

30. As a proximate result of the false arrest and imprisonment committed by defendants, plaintiff has sustained permanent physical injuries. These injuries have caused and will continue to cause plaintiff great pain and suffering, both mental and physical.

COUNT IV: ASSAULT AND BATTERY

Defendant Police Officers

(Claim for Exemplary Damages)

31. Plaintiff incorporates herein by reference the allegations contained in paragraphs 1 through 30.

32. The intentional verbal abuse of plaintiff by defendants, and the use of non-deadly force when plaintiff was unarmed and did not pose a threat of death or grievous bodily injury to defendants or others, when defendants did not have lawful authority to arrest plaintiff or to use deadly or non-deadly force against him, was done with actual malice toward plaintiff and with willful and wanton indifference to and deliberate disregard the rights of plaintiff. Plaintiff is thus entitled to exemplary damages.

COUNT V: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(Claim for Compensatory Damages)

33. Plaintiff incorporates herein the allegations contained in paragraphs 1 through 32.

34. Defendants intentionally falsely arrest and imprison the plaintiff in a manner that was extreme, outrageous, and unjustified, and caused plaintiff to suffer emotional distress for which defendants are individually liable.

COUNT VI: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(Claim for Exemplary Damages)

35. Plaintiff incorporates herein by reference the allegations contained in paragraphs 1 through 34.

36. The intentional arrest and verbal and physical abuse of plaintiff by defendants were unjustified and done with actual malice and wanton indifference in deliberate disregard for the rights of plaintiff. Plaintiff is thus entitled to exemplary damages.

COUNT VII: RESPONDEAT SUPERIOR LIABILITY
Defendant City of New York and The New York City Police Department
(Claim for Compensatory Damages)

37. Plaintiff incorporates herein the allegations contained in paragraphs 1 through 36.

38. At all times pertinent here to, defendants were acting within the scope of their employment as officers of The New York City Police Department.

39. The City of New York is liable for compensatory damages under the doctrine of respondent superior for the intentional torts of defendants committed within the scope of their employment.

COUNT VIII: RESPONDEAT SUPERIOR LIABILITY
Defendant City of New York and The New York City Police Department
(Claim for Exemplary Damages)

40. Plaintiff incorporates herein the allegations contained in paragraph 1 through 39.

41. The City of New York and The New York City Police Department, through its agents, expressly authorized defendants to engage in such activity as false arrest and imprisonment; knew, through its agents, that the defendant officers had a propensity for making false arrests and committing intentional torts, in the line of duty; and acquiesced in the defendant's wrongful conduct. Plaintiff is thus entitled to exemplary damages against The City of New York and The New York City Police Department for the malicious conduct of defendants.

COUNT IX:
MALICIOUS ABUSE OF PROCESS, FALSE ARREST, AND
FALSE IMPRISONMENT
(Claim for Compensatory Damages)

42. Plaintiff incorporates herein the allegations contained in paragraphs 1 through 41.

43. In arresting plaintiff, defendants abused their power and authority as employees of The City of New York and The New York City Police Department and under the color of state and or local law, and used criminal process against plaintiff in order to intimidate them.

44. Defendants falsely arrested and falsely imprisoned plaintiff, deprived plaintiff of his rights pursuant to the Constitution and laws of the United States to be free from unlawful arrests and seizures.

45. By reason of defendants' illegal detention of plaintiff, defendants subjected plaintiff to an unlawful search and seizure, false arrest and imprisonment, in violation of the Constitution and the laws of the State of New York.

46. As a proximate result of this malicious abuse of process, false arrest, and false imprisonment, plaintiff suffered the damages as aforesaid.

COUNT X:
NEGLIGENCE
(Claim for Compensatory Damages)

47. Plaintiff incorporates herein the allegations contained in paragraphs 1 through 46.

48. Defendants acted negligently and recklessly in restraining, apprehending, and arresting **BRIAN BROWN**, and caused him to be physically injured.

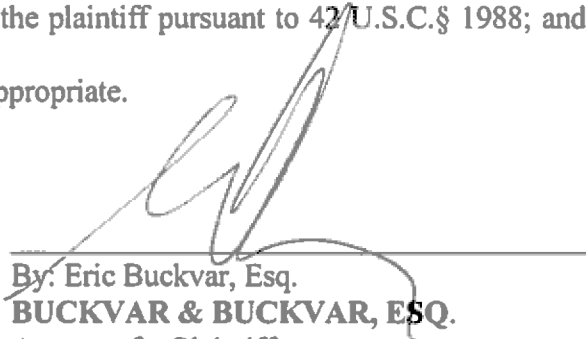
49. The negligence of the defendants consisted of improperly restraining, apprehending and arresting **BRIAN BROWN**, of failing to use proper and accepted police practices in restraining, apprehending and arresting **BRIAN BROWN**, of failing to use the usual accepted standardized,

recognized and customary care and diligence and skill in restraining, apprehending and arresting **BRIAN BROWN** that such situation required and of failing to properly instruct and supervise defendants in restraining, apprehending and arresting individuals while using due care so as not to injure them.

50. That the aforesaid injuries and damages resulting to the plaintiff, **BRIAN BROWN**, was caused by reason of the negligence of the defendants, all without any culpable conduct on the part of the plaintiff contributing thereto.

WHEREFORE, the plaintiff demand judgment against the defendants in a sum in excess of the jurisdictional limits of all courts lower than the Supreme Court which would otherwise have jurisdiction of this action, together with punitive damages and the costs, interest and disbursements of this action, including reasonable attorney fees to the plaintiff pursuant to 42 U.S.C. § 1988; and such other and further relief as the court may deem appropriate.

Dated: New York, New York
August 27, 2020



By: Eric Buckvar, Esq.
BUCKVAR & BUCKVAR, ESQ.
Attorney for Plaintiff
BRIAN BROWN
11 Broadway, Suite 1054
New York, NY 10004
(212) 962-2173

ATTORNEY VERIFICATION**STATE OF NEW YORK, COUNTY OF NEW YORK**

I, the undersigned, an attorney admitted to practice in the courts of New York State, say that
I am the attorney of record for plaintiff **BRIAN BROWN**.

I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the
contents thereof, the same is true to my own knowledge, except as to the matters therein alleged to
be on information and belief, and as to those matters I believe to be true. The reason this
verification is made by me and not by plaintiff is because plaintiff resides in a different county other
than where I maintain my office.

Dated: New York, New York
August 27, 2020



ERIC BUCKVAR, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BRIAN BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, and POLICE OFFICER HERNANDEZ, SHIELD
#7459, (77TH POLICE PRECINCT), JOHN DOE SERGEANT
(77TH POLICE PRECINCT) and JOHN DOE COMPLAINANT,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

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